



File No: EXP202208472

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On July 13, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against EUROPA PRESS DE CATALUNYA, S.A. (hereinafter, the claimed party), through the Agreement that is transcribed:

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File No: EXP202208472

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 02/08/2022, the Director of the Spanish Agency for Data Protection sent a letter to the General Subdirectorate of Data Inspection indicating:

"A possible infringement in the processing of personal data has been brought to the attention of this Agency, through communication 000007128e2100015794, regarding the facts described below. The complainant informed this Agency that several media outlets published on their websites the audio of the statement before the judge of a victim of multiple rape, to illustrate the news related to the holding of the trial, in a case that was highly publicized.

The complainant provided links to the news published on the websites of the claimed media, and it was verified that currently none are available. However, the emergence of new content and new responsible parties makes it necessary to investigate the facts and their authorship.

Therefore, the General Subdirectorate of Data Inspection is urged to initiate ex officio Preliminary Investigation Actions aimed at verifying these facts."

SECOND: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

- 1) On 05/08/2022, a request was made to EUROPA PRESS CATALUNYA, S.A. (hereinafter, EUROPA PRESS) for the deletion of the content located at the url ***URL.1.
- 2) On 10/08/2022, this Agency received a response from EUROPA PRESS stating the following: "On August 6, 2022, our entity received a notification from this Agency with file number AI/00301/2022, in which we were informed of a publication of content that allegedly violates the legislation on personal data protection.

By means of this letter and pursuant to Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights, we inform you that the content indicated in that notification has been removed."

- 3) On 11/08/2022, a verification carried out by this Agency on 21/07/2022 was incorporated into the inspection actions, regarding:

- The publication of a video at the incomplete url ***URL.2. This content was published by the profile "Europa Press Catalunya" on ***DATE.1, where the following text appears below the video: "(...)".

- 4) On 12/08/2022, a diligence carried out by this Agency on 8 and 11/08/2022 was incorporated into the inspection actions, in which it was verified that the content of the indicated url has been deleted.

- 5) On 07/11/2022, a response prepared by the complainant to the information request dated 07/11/2022 was received by this Agency, in which they state that their complaint was made as a whistleblower and not as an interested party, nor as a representative of the interested party.

THIRD: According to the report collected from the AXESOR tool, the entity EUROPA PRESS DE CATALUNYA, S.A. is a small company established in 1978, with a turnover of 1,482,563 euros in 2021.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each control authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD,

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The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

The voice of a person, according to Article 4.1 of the GDPR, is a personal data as it makes the individual identifiable, and its protection is therefore the subject of the GDPR:

“personal data”: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;”

The voice is a personal attribute unique and individual to each natural person, defined by its pitch, intensity, and timbre. Endowed with unique and distinctive traits that directly individualize it, associating it with a specific individual, it is shaped while speaking, allowing one to discern, through it, the age, sex, health status of the individual, their personality, culture, origin, hormonal, emotional, and psychological state. Elements of expression, idiolect, or intonation are also personal data considered in conjunction with the voice.

Therefore, the report 139/2017 from the Legal Office of this Agency states that “the image, as well as the voice of a person, is personal data, just as any information that allows for the determination, directly or indirectly, of their identity (...)”

In fact, the ruling of the National Court dated March 19, 2014 (rec. 176/2012) states that “the voice of a person constitutes personal data, as deduced from the definition provided by Article 3.a) of the LOPD, as <>, a matter that is not controversial.”

Article 4.2 of the GDPR defines “processing” as: “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of making available, alignment, combination, restriction, erasure or destruction.”

The inclusion of a person's voice in journalistic publications, which identifies or makes an individual identifiable, constitutes processing of personal data and, therefore, the data controller carrying out such processing is obliged to comply with.

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the obligations established for the data controller in the GDPR and in the LOPDGDD.

III

Right to data protection

This procedure is initiated because EUROPA PRESS published, on the website referred to in the facts, the audio of the statement before the judge of a victim of a multiple rape, to illustrate the news related to the holding of the trial in a case that was highly publicized. The victim's voice was clearly discernible as she recounted in graphic detail the multiple rape she suffered. All of this constitutes a processing of the victim's personal data.

Individuals have the power to dispose of their personal data, including their voice, as well as its dissemination, and undoubtedly, the person whose personal data is disseminated in violation of the legal system deserves protection.

Thus, the STC 292/2000, of November 30, states that "the content of the fundamental right to data protection consists of a power of disposal and control over personal data that empowers the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which this third party may collect, and that also allows the individual to know who possesses that personal data and for what purpose, being able to oppose that possession or use. These powers of disposal and control over personal data, which are part of the content of the fundamental right to data protection, are legally specified in the authority to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses by a third party, whether the State or a private individual. And that right to consent to the knowledge and processing, whether computerized or not, of personal data requires as indispensable complements, on the one hand, the authority to know at all times who has that personal data and what use they are subjecting it to, and, on the other hand, the power to oppose that possession and uses."

In this regard, and regardless of what the legal basis legitimizing the processing may be, every data controller must respect the principles of processing set out in Article 5 of the GDPR. We will highlight Article 5.1.c) of the GDPR which states that:

"1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

However, we are faced with a fundamental right that is not absolute, since in certain cases the Fundamental Right to Data Protection may yield to the prevalence of other rights and freedoms that are also constitutionally recognized and protected, such as, for example, the Fundamental Right to Freedom of Information, weighing this case by case.

However, in the present case, as we will explain, it must be considered that the processing carried out by EUROPA PRESS within the framework of freedom of information has been excessive, as there is no prevailing public interest in the dissemination of the victim's voice—without adding any value to the information by maintaining the victim's real voice (without distortion, for example)—under which pretext it seems that those data have been disclosed; a voice that, combined with the fact that it is a highly publicized case, makes the victim clearly identifiable. When weighing the conflicting interests and considering the concurrent circumstances of this case, namely, the particularly sensitive nature of the personal data and the intense impact on the victim's privacy, the interest of the holder of the right to protect her personal data and not to have it disseminated deserves greater protection than the purported public interest in its dissemination.

IV

Right to information

In the conflict between the Fundamental Rights to Freedom of Information in relation to the Fundamental Right to the Protection of Personal Data, even though equal degrees of protection are recognized for both constitutional rights, the former is usually granted precedence by our courts, after evaluating and weighing all the elements at play.

However, precedence does not mean prevalence when, considering all the concurrent circumstances in a specific case, the limits set by regulations and jurisprudence are exceeded.

In this sense, the Article 29 Working Party in its Opinion 06/2014 on the concept of legitimate interest of the data controller under Article 7 of Directive 95/46/EC, when examining the legal basis of legitimate interest under Article 7.1.f) of Directive 95/46/EC, fully transferable to the current art. 6.1.f) of

the GDPR, includes the right to freedom of expression or information as one of the scenarios in which the issue of legitimate interest may arise, asserting that “without prejudice to whether the interests of the data controller will ultimately prevail over the interests and rights of the data subjects when the balancing test is carried out.”

V

Limits to the Fundamental Right to Freedom of Information

That said, the Fundamental Right to Freedom of Information is also not absolute. We can observe very clear limits established by the courts in the civil sphere, in relation to the Right to Honor, to Personal and Family Privacy, and to One's Own Image.

Thus, we will cite, among others, the STC 27/2020, of February 24, 2020 (amparo appeal 1369-2017) which states, in relation to the image of a person, and starting from the incontrovertible fact that it makes them identifiable, that “...the issue

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The debate is reduced to weighing whether the non-consensual reproduction of the image of an anonymous person—specifically, someone who is not a public figure but who suddenly and involuntarily acquires a role in a newsworthy event, in this case as a victim of a failed homicide attempt by their brother and the subsequent suicide of the latter—constitutes an illegitimate intrusion into their fundamental right to their own image (art. 18.1 CE).

[...]

...that criminal events are newsworthy occurrences, even regardless of the private status of the person affected by the news. However, the limit lies in the individualization, whether direct or indirect, of the victim, as this data is not of public interest because it lacks relevance for the information that is allowed to be transmitted (SSTC 20/1992, of February 20; 219/1992, of December 3; 232/1993, of July 12; 52/2002, of February 25; 121/2002, of May 20, and 127/2003, of June 30). Thus, this is currently recognized by Law 4/2015, of April 27, on the Statute of the Victim of Crime, in force since October 28, 2015, which warns of the need “from public authorities [to provide] a response as broad as possible, not only legal but also social, to victims, not only repairing the damage within the framework of a criminal process but also minimizing other traumatic effects on a moral level that their condition may generate, all regardless of their procedural situation. Therefore, this Statute, in line with European regulations on the matter and with the demands posed by our society, aims, starting from the recognition of the dignity of victims, to defend their material and moral goods and, with that, those of society as a whole.” In cases like those raised in this appeal, this Court must give relevance to the prevalence of the victim's right to their image over informational freedoms, as the graphic information became superfluous or unnecessary due to the lack of real interest in the transmission of the information, in this case the apparent commission of a homicide and subsequent suicide” (the emphasis is ours).

We will also add the STS, from its First Civil Chamber, 272/2011 of April 11, 2011 (rec. 1747/2008), which, regarding the necessary data to provide information and the limits to public interest, states that “b) Trivial information is not protected (ATC 75/2006), but the act of providing unnecessary data in a case of rape (the full name, the initials of the surnames, the street address where the victim lived) that have no community relevance, do not respect privacy, only seek to satisfy curiosity, cause disturbances or discomfort, and unnecessarily reveal aspects of personal and private life, allowing neighbors, close individuals, and family members to fully identify the victim and know in detail an act that severely infringes upon their dignity (STC 185/2002) or about a disease that has no public interest and directly affects the irreducible sphere of intimacy and is revealed for the sake of a mere joke or jest (STC 232/1993);”.

Likewise, the STS, from its First Civil Chamber, Judgment 661/2016 of November 10, 2016 (rec. 3318/2014), regarding the capture and dissemination in court of the image of a victim of gender-based violence, stated that “1st) The interest of the questioned information and the right of the defendant

television channel is not disputed.”

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to broadcast recorded images during the oral trial of the criminal case, as there is no limitation in this regard agreed upon by the judicial body.

2.^a) The only contentious point is, therefore, whether the identification of the claimant as a victim of the crimes adjudicated in said criminal case, through close-ups of her face and the mention of her full name and place of residence on 31/03/2022, was also included in the fundamental right of the defendant television channel to transmit truthful information or, on the contrary, was limited by the claimant's fundamental rights to her personal privacy and her own image.

3.^a) Regarding this issue, the jurisprudence has recognized the general interest and public relevance of information about criminal cases (ruling 547/2011, of July 20), which is accentuated in cases of physical and psychological abuse (rulings 128/2011, of March 1, and 547/2011, of July 20), but it has also specified, concerning the identification of the individuals involved in the trial, that the accused and the victim are not on an equal footing, as a complete identification is permissible for the former, and not just by their initials, due to the nature and social significance of the crimes of abuse (ruling 547/2011, of July 20).

[...]

6.^a) In conclusion, the defendant television channel should have acted with the prudence of a diligent professional and avoided broadcasting images that depicted the appellant in close-up, either by refraining from airing the corresponding shots or by using technical procedures to blur her features and prevent her recognition (ruling 311/2013, of May 8). Likewise, it should have avoided mentioning her full name, as this information, insufficient by itself to constitute an unlawful intrusion, became relevant when pronounced on screen simultaneously with the image of the claimant and when her place of residence was also mentioned, all of which were unnecessary for the essence of the content of the information, as demonstrated by news about the same trial published the following day in other media.

7.^a) The identification of the claimant through her image and the indicated personal data and its direct link to an episode of gender-based violence and other serious crimes, when it was foreseeable that there would be simultaneous or subsequent revelation of data regarding how the victim and her aggressor met and how the criminal acts occurred, implies that the loss of anonymity violated both the claimant's right to her own image, due to the broadcasting of her physical features, and her personal and family privacy, to the extent that reserved data pertaining to her private life (that she went online to start a relationship or the intimate content of some of her conversations), which lacked offensive significance in a situation of anonymity, became significant from the moment any person watching those news programs and residing in the victim's locality could know to whom they referred, so that the psychological harm inherent to her condition as a victim of the crimes was compounded by the moral harm consisting of the disclosure of private life details that she had not consented to make public.” (the emphasis is ours).

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As we can verify, there is a clear reference to the excessive processing of personal data (some of which are not of an intimate nature) in order to provide the information, considering them entirely unnecessary given the concurrent circumstances. Occasionally, courts refer to intimate data, but at times it concerns personal data that is not intimate, such as, for example, the image of a natural person obtained from a photograph published on a social network or the first and last name.

Balance between the Fundamental Right to Freedom of Information and the Fundamental Right to the Protection of Personal Data

In the specific case examined, as we have indicated, EUROPA PRESS published, on the website referred to in the facts, the audio of the statement made before the judge by a victim of multiple rape, to illustrate the news of a highly publicized case. Thus, it is not a matter, as in other jurisprudentially examined cases, of giving precedence to one fundamental right over another, having to choose which one carries more weight in a specific case. Rather, it is about finding a balance between both in order to achieve the purpose of the former without distorting the latter. The reconciliation of both rights is nothing new, as the European legislator mandates such reconciliation in Article 85 of the GDPR. As we have seen previously, the Fundamental Right to Freedom of Information is not unlimited, since the jurisprudential interpretation when confronting it with other rights and freedoms does not allow for it in every case and to the fullest extent, but rather, the prevalence that courts usually grant it can be limited by other fundamental rights that must also be respected. Thus, its limitation is observed when the personal data provided were unnecessary for the essence of the content of the information. We must consider the special circumstances present in the examined case. It concerns a very young woman who has suffered a multiple rape. In the published recording, she can be heard recounting, with great emotional weight, the sexual aggression suffered in all its rawness, (...). Furthermore, we cannot lose sight of the victim status of the woman whose voice, with all the nuances expressed, has been disseminated.

Let us recall, for purely illustrative purposes, that Law 4/2015, of April 27, on the Statute of the Victim of Crime, as well as the recent Organic Law 10/2022, of September 6, on comprehensive guarantee of sexual freedom, provide for a special need for protection for victims of crimes against sexual freedom or sexual integrity. Additionally, the aforementioned Statute of the Victim of Crime also provides for special protection for victims of violent crimes. And in the examined case, both circumstances concur. In this case, the situation of the victim (who is not on the same level of equality as the accused) and what the dissemination of her voice with all its nuances implies must be considered, as well as the special protection that must be afforded to her.

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legal framework that, without constraining the supply of information, must be made compatible with the principle of data minimization, applicable to the manner, the medium in which the information is supplied and disseminated due to the immediate impact on the personal data and the identification of the victim.

Precisely because the evident public interest in the news is not denied, given the general interest in criminal cases, in this specific case, it is not about diminishing the Fundamental Right to Freedom of Information due to the prevalence of the Fundamental Right to the Protection of Personal Data, but rather about making them fully compatible so that both are absolutely guaranteed. That is, the freedom of information of the media is not questioned, but rather the balancing with the right to data protection based on the proportionality and necessity of publishing the specific personal data of the voice. Such a situation could have been resolved by using technical procedures to prevent the recognition of the voice, such as, for example, the distortion of the victim's voice or the transcription of the account of the multiple rape, both security measures, applied depending on the case in an ordinary manner by the media.

Furthermore, we must emphasize that the victim is an anonymous person and our Constitutional Court, by all STC 58/2018 of June 4, states that public authorities, public officials, and public figures or those engaged in activities that involve public notoriety “voluntarily accept the risk that their subjective personal rights may be affected by criticism, opinions, or adverse revelations and, therefore, the right to information reaches, in relation to them, its maximum level of legitimizing effectiveness, in that their life and moral conduct participate in the general interest with greater intensity than that of private individuals who, without a vocation for public projection, are circumstantially involved in matters of

public significance, to whom a superior scope of privacy must consequently be recognized, which prevents granting general significance to facts or behaviors that would have it if referred to public figures.”

The CJEU (Second Chamber) ruling of February 14, 2019, in case C 345/17, *Sergejs Buivids*, refers to various criteria for weighing the right to respect for privacy against the right to freedom of expression, among which are “the contribution to a debate of general interest, the notoriety of the affected person, the subject matter of the report, the previous behavior of the interested party, the content, the form and the repercussions of the publication, the manner and circumstances in which the information was obtained and its veracity (see, in this sense, the ECHR judgment of June 27, 2017, *Satakunnan Markkinapörssi Oy and Satamedia Oy v. Finland*, CE:ECHR:2017:0627JUD000093113, paragraph 165).”

Thus, for a matter to be considered of general interest, of public relevance, it must be so not only because of the person involved but also because of the subject matter to which it refers. Both requirements must be met, resulting, further to what was stated in the previous section, that in the examined case the victim is not a public person; rather, it is of great interest that they are not recognized by third parties, as this could imply a new penalty.

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to the already suffered. The victim is an anonymous person and must remain so, in such a way that their fundamental rights are fully guaranteed.

In the present case, (i) we are neither dealing with a public figure, in the sense that such relevance is sufficient to understand that it entails, *ex lege*, a dispossession of their fundamental right to the protection of their personal data, and (ii) although we are faced with “publicly relevant” facts, in the sense that they are revealed as “necessary” for the exposition of ideas or opinions of public interest, that necessity does not extend to providing data that identifies the victim.

Therefore, as expressed by the Supreme Court in its ruling (civil) 697/2019, of December 19, 2019, the formation of a free public opinion does not require, nor justify, that the fundamental right to one’s own image [in this case, to the protection of personal data] be affected with such gravity and in a manner that does not maintain the necessary connection with the identification of the person subject to the information.

VII

Obligations of the data controller

Every data controller has obligations regarding data protection, as prescribed in the GDPR and in the LOPDGDD, highlighting, in terms of our interest, proactive responsibility, Article 5.2 of the GDPR, risk assessment, and the implementation of appropriate security measures. Obligations that are even more relevant when, as in the case we are examining, it is particularly sensitive.

Such obligations do not diminish because we are dealing with a data controller that is a media outlet. If we combine the dissemination of the victim's voice (with all its nuances), which makes them identifiable and recognizable by third parties, with the factual account they provide regarding the violation suffered, there is a very high and probable risk that they may suffer harm to their rights and freedoms. This has occurred in other cases of dissemination of personal data of victims of sexual assault. Moreover, with the dissemination of the victim's voice, they are being condemned again to be recognized by third parties, when it is neither a proportional nor necessary treatment in relation to the information purposes pursued.

In the case examined, EUROPA PRESS immediately removed the recording of the hearing in which the victim's voice was disseminated at the request of the AEPD.

VIII

Classification and qualification of the infringement of Article 5.1.c) of the GDPR

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the complained party

has processed data that was excessive as it was not necessary for the purpose for which it was processed.

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The known facts could constitute an infringement, attributable to the complained party, of Article 5.1.c) of the GDPR, with the scope expressed in the previous Legal Grounds, which, if confirmed, could imply the commission of the infringement classified in Article 83.5, section a) of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that:

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 72 “Infringements considered very serious” of the LOPDGDD indicates:

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)”

IX

Proposal for sanction for the infringement of Article 5.1.c) of the GDPR

The corrective powers of the Spanish Agency for Data Protection, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the power to impose an administrative fine in accordance with Article 83 of the GDPR -Article 58.2 i)-, or the power to order the controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified timeframe -Article 58.2 d)-.

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

In the present case, taking into account the facts presented and without prejudice to what results from the instruction of the procedure, it is considered that the sanction that

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it would be appropriate to impose an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding whether to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or

purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and detriment suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringements committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have previously been ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42,

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

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“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The ongoing nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have contributed to the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having a data protection officer when not mandatory.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

In an initial assessment, the following concurrent criteria for graduation are estimated:

As aggravating circumstances:

- Nature, gravity, and duration of the infringement (Article 83.2.a) of the GDPR): the nature of the infringement is very serious as it entails a loss of disposition and control over personal data for a person who has been a victim of a violent crime and against sexual integrity, and by disseminating their personal data, they are condemned again to be recognized by third parties, causing serious damage and detriment.

- The intentionality or negligence in the infringement (Article 83.2.b) of the GDPR): although this Agency considers that there was no intentionality on the part of EUROPA PRESS, it concludes that it was negligent in not ensuring a procedure that guaranteed the protection of personal data in such

sensitive circumstances, especially when in many cases the voice is distorted in news reports to prevent the person speaking from being recognized.

- The categories of personal data affected by the infringement (Article 83.2.g) of the GDPR): the certain possibility of recognizing the victim of a crime as a result of the dissemination of their personal data.

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which informs of the very serious, violent news against sexual integrity (multiple rape), constitutes a serious harm to the affected party, as what happened is linked to her sexual life.

The balance of the previous circumstances allows for an initial assessment of a fine of €50,000.00 (fifty thousand euros) for the infringement of Article 5.1.c) of the GDPR.

X

Confirmation of provisional measures

Article 69 of the LOPDGDD states that:

“1. During the preliminary investigation proceedings or when a procedure for the exercise of the sanctioning power has been initiated, the Spanish Data Protection Agency may reasonably agree on the necessary and proportionate provisional measures to safeguard the fundamental right to data protection and, in particular, those provided for in Article 66.1 of the Regulation, the precautionary blocking of data and the immediate obligation to comply with the requested right. [...]”.

Consequently, it is deemed necessary to confirm the provisional measures imposed on EUROPA PRESS regarding:

- The removal of the video accessible at the url ***URL.1, or any other publications related to its entity in which the voice of the participant is identifiable; or to distort this voice in said contents, avoiding, to the extent that the state of technology allows, the re-uploading or reloading of exact copies or replicas by the same or other users.
- The removal or modification of the contents shall be carried out in such a way that it makes access and availability of the original by third parties impossible, but guarantees its preservation, for the purpose of safeguarding the evidence that may be necessary in the course of the police or administrative investigation or the judicial process that may be instructed.

Therefore, in light of the above, by the Director of the Spanish Data Protection Agency,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against EUROPA PRESS DE CATALUNYA, S.A., with NIF A08536922, for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR,

SECOND: To confirm the following provisional measures imposed on EUROPA PRESS DE CATALUNYA, S.A., with NIF A08536922:

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- The removal of the video accessible at the url ***URL.1, or any other publications related to its entity in which the voice of the participant is identifiable; or to distort this voice in said contents, avoiding, to the extent that the state of technology allows, the re-uploading or reloading of exact copies or replicas by the same or other users.

- The removal or modification of the contents shall be carried out in such a way that it makes access and availability of the original by third parties impossible, but guarantees its preservation, for the

purpose of safeguarding the evidence that may be necessary in the course of the police or administrative investigation or the judicial process that may be instructed.

THIRD: TO APPOINT R.R.R. as the instructor and S.S.S. as the secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

FOURTH: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the preliminary proceedings prior to the initiation of this sanctioning procedure.

FIFTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be an administrative fine of €50,000.00 (fifty thousand euros), without prejudice to what results from the instruction.

SIXTH: TO NOTIFY this agreement to EUROPA PRESS DE CATALUNYA, S.A., with NIF A08536922, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number indicated in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be established at €40,000.00 (forty thousand euros), resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be established at €40,000.00 (forty thousand euros), and its payment

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will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €30,000.00 (thirty thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above €40,000.00 (forty thousand euros), or €30,000.00 (thirty thousand euros), you must make it effective by depositing it into account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering. You must also send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation

agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive the notification availability notice and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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SECOND: On July 24, 2023, the party being claimed has proceeded to pay the sanction in the amount of 30,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the renunciation of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: In the aforementioned Initiation Agreement transcribed above, it was indicated that if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...".

Having received a letter from EUROPA PRESS DE CATALUNYA, S.A. informing that it has adopted the necessary measures to prevent the reoccurrence of the events leading to the infringement committed, this Agency acknowledges receipt of the same, without this declaration implying any pronouncement on the regularity or legality of the measures adopted.

It is warned about the provisions of Article 5.2 of the GDPR, which establishes the principle of proactive responsibility when it states that "The controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it." This principle refers to the obligation that falls on the data controller not only to design, implement, and observe the appropriate legal, technical, and organizational measures to ensure that data processing is in accordance with the regulations but also to remain actively vigilant throughout the entire lifecycle of the processing to ensure that compliance is correct, and to be able to demonstrate it.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures...

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Processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202208472, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to EUROPA PRESS DE CATALUNYA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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